

**Criminal Appeal No. 02 of 2024****Present:****Mr. Justice Md. Shohrowardi**

Mr. Momtazuddin Ahmed(Mehedi), Advocate with  
Mr. Anabilananda Roy, Advocate

.....For the convict appellant.

Mr. Md. Nawsher Ali Mollah, Advocate

....for the ACC

**21.01.2024**

Records be called for.

This appeal will be heard and issue the usual notices upon the respondents.

The preparation of paper book is hereby dispensed with.

Let the realization of fine be stayed till disposal of the appeal.

The learned Advocate Mr. Momtazuddin Ahmed Mehedi appearing along with learned Advocate Mr. Anabilananda Roy on behalf of the appellant petitioner having placed the application for bail submits that the properties/assets acquired by the appellant petitioner had been shown in the income tax return filed by the appellant petitioner in the year 2016-2017 before lodgment of the FIR and after assessment, tax was recovered from the appellant-petitioner. Therefore, in view of the decision made in the case of Md. Hafiz Ibrahim vs. State and another reported in 7 CLR(HCD)(2019) 27 no offence under section 27 of the Anti Corruption Commission Act, 2004 was committed and the trial court without considering the referred case passed the impugned judgment and order illegally convicting the appellant petitioner. He also submits that the appellant petitioner is a businessman and a young lady aged about 35 years. She is also a mother of two children and has been languishing in the custody since 18.12.2023. Therefore, he prayed for bail.

The learned Advocate Mr. Md. Nawsher Ali Mollah appearing on behalf of the respondent No.2 (ACC) submits that the Criminal Petition for Leave to Appeal filed by the respondent No. 2 against the judgment and order passed by the High Court Division reported in 7 CLR(HCD)(2019) 27 is now pending before the Appellate Division and the trial court on proper assessment of the evidence rightly convicted the appellant petitioner. He opposes the prayer for bail.

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I have heard the learned Advocates of both the sides and perused the application for bail, impugned judgment and order passed by the trial Court and the records.

In the referred case it has been held that;

“There are so many businessmen and professionals who legally earn a lot of money, but do not show it in their tax files just to evade tax. Such evasion, if detected, he/she may be liable to be prosecuted under the penal provisions of the Income Tax Ordinance, 1984, but it does not constitute any offence of corruption or that under section 27 of the Act, V of 2004.”

Considering the submission of the learned Advocate of both the parties, I am inclined to enlarge the appellant petitioner on bail.

Pending hearing of appeal, let the appellant-petitioner Aysha Akter Soma @ Most. Soma wife of Md. Zakir Hossain be enlarged on bail subject to satisfaction of the learned Special Judge (District and Sessions Judge), Court No. 7, Dhaka for 6 (six) months from date.